Chapter - 18

Cyber Crimes

Cyber crimes are a new class of crimes which are rapidly increasing due to extensive use of Internet and I.T. enabled services. Considering the importance and increasing trend the Bureau has started collecting extensive data of offences registered under various section of IT Act, related section of IPC and SLL since 2014 under the revised proforma.

The Information Technology (IT) Act, 2000, specifies the acts which are punishable. Since the primary objective of this Act is to create an enabling environment for commercial use of I.T., certain omissions and commissions of criminals while using computers have been included in 2008 in the amended Act. Several offences having bearing on cyber-arena are also registered under the appropriate sections of the IPC with the legal recognition of electronic records and the amendments made in several sections of the IPC vide the IT Act, 2000.

The statistics on cyber crimes are collected under the following heads:

i) Offences registered under the Information Technology Act, 2000.

ii) Offences under the IPC related to cyber crimes

iii) Offences under the Special and Local Laws (SLL) related to cyber crimes

Data collected under combined section 66 & 66A and 67 & 67A of IT Act.

Table 18(A)

Patterns of Cases Reported and Persons Arrested under IT Act during 2013 – 2015 and Percentage Variation during 2015 over 2014

SL	Crime heads under IT Act	Cases Registered			% Var.	Persons Arrested			% Var.
		2013	2014	2015		2013	2014	2015	
1	Tampering Computer Source Documents (Sec. 65 of IT Act)	137	89	88	-1.1	59	64	62	-3.1
2	Computer Related Offences(Sec. 66 to 66E of IT Act)	2,516	5,548	6,567	18.4	1,011	3,131	4,217	34.7
3	Cyber Terrorism@(Sec. 66F of IT Act)	-	5	13	160.0	-	0	3	-
4	Publication/Transmission of Obscene/Sexually Explicit Content(Sec. 67 to 67C of IT Act)	1203	758	816	7.7	737	491	555	13
5	Intentionally not Complying with the Order of Controller(Sec. 68 of IT Act)	13	3	2	-33.3	3	4	3	-25
6	Failure to Provide or Monitor or Intercept or Decrypt Information(Sec. 69 of IT Act)	6	2	0	-100	7	0	0	-
7	Failure to Block Access any Information Hosted etc.@ (Sec. 69A of IT Act)	-	1	0	-100	-	0	0	-
8	Not Providing Technical Assistance to Govt. to Enable Online Access@(Sec. 69B of IT Act)	-	0	3	-	-	0	0	-
9	Un-authorized Access/Attempt to Access to Protected Computer System(Sec. 70 of IT Act)	27	0	8	-	17	0	4	-
10	Misrepresentation/Suppression of Fact for Obtaining License etc. (Sec. 71 of IT Act)	12	5	4	-20	14	13	2	-84.6
11	Breach of Confidentiality/Privacy(Sec. 72 of IT Act)	93	16	20	25	30	13	6	-53.8
12	Disclosure of Information in Breach of Lawful Contract@(Sec. 72A of IT Act)	-	2	4	100	-	5	2	-60
13	Publishing/Making Available False Elect. Signature Certificate (Sec. 73 of IT Act)	4	0	3	-	8	0	0	-
14	Create/Publish/Make Available Electronic Signature Certificate for Unlawful Purpose(Sec. 74 of IT Act)	71	3	3	0	51	5	3	-40
15	Others	274	769	514	-33.2	161	520	245	-52.9
Total Offences under IT Act		**4,356**	**7,201**	**8,045**	**11.7**	**2,098**	**4,246**	**5,102**	**20.2**

Note: '-' implies sezo value in previous year. % Var. – refers the Percentage Variation during 2015 over 2014
''@ implies data collected in 2014 for the first time

Cyber Crimes
(Cases Reported: 11,592
Persons Arrested: 8,121)

A total of 11,592 cases were registered under the cyber crimes (which includes cases under Information Technology Act, offences under related sections of IPC and offences under Special and Local Laws (SLL)) in comparison to 9,622 cases registered during the previous year (2014) which shows an increase of 20.5% over the previous year. Uttar Pradesh has reported the highest number of such crimes accounting for 19.0% (2,208 cases out of 11,592 cases) of total cyber crimes followed by Maharashtra (2,195 cases out of 11,592 cases) accounting for 18.9% and Karnataka (1,447 cases out of 11,592 cases i.e. 12.5%).

In these cases a total of 8,121 persons were arrested during 2015 in comparison to 5,752 persons arrested during the previous year (2014) registering 41.2% increase over the previous year. Uttar Pradesh (1,699) has reported the maximum number of persons arrested under such crimes.

The details of cases registered and persons arrested under cyber crimes during 2015 can be seen under **Table – 18.1.**

Cyber Crimes – Cases of Various Categories under the IT Act, 2000

Information on the cases registered under the IT Act relating to cyber crimes at all-India level is presented in **Table – 18(A).**

A total of 8,045 cases were registered under the IT Act during the year 2015 in comparison to 7,201 cases during the previous year (2014), showing an increase of 11.7% in 2015 over 2014. 81.6% (6,567 cases) of the total 8,045 cases under IT Act were related to computer related offences (under section 66 & 66A, 66B, 66C, 66D and 66E of IT Act) followed by 10.1% (816 out of 8,045 cases) under publication/transmission of obscene/sexually explicit content (under section 67 & 67A, 67B and 67C of IT Act). A total of 14,121 cases under IT Act including 6,268 cases pending from previous year were investigated during the year 2015 and at the end of the year 8,088 cases remained pending for investigation. A total of 2,396 cases were charge-sheeted during 2015. A total of 4,191 cases were pending for trial at the end of the year 2015, in which maximum number of cases were computer related offences (under section 66 & 66A, 66B to 66D of IT Act) (3,110 cases) during 2015. In 486 cases trials were completed, 193 cases ended in conviction. The details of disposal of cases of cyber crimes under the IT Act are shown under **Table - 18.2 and 18.3.**

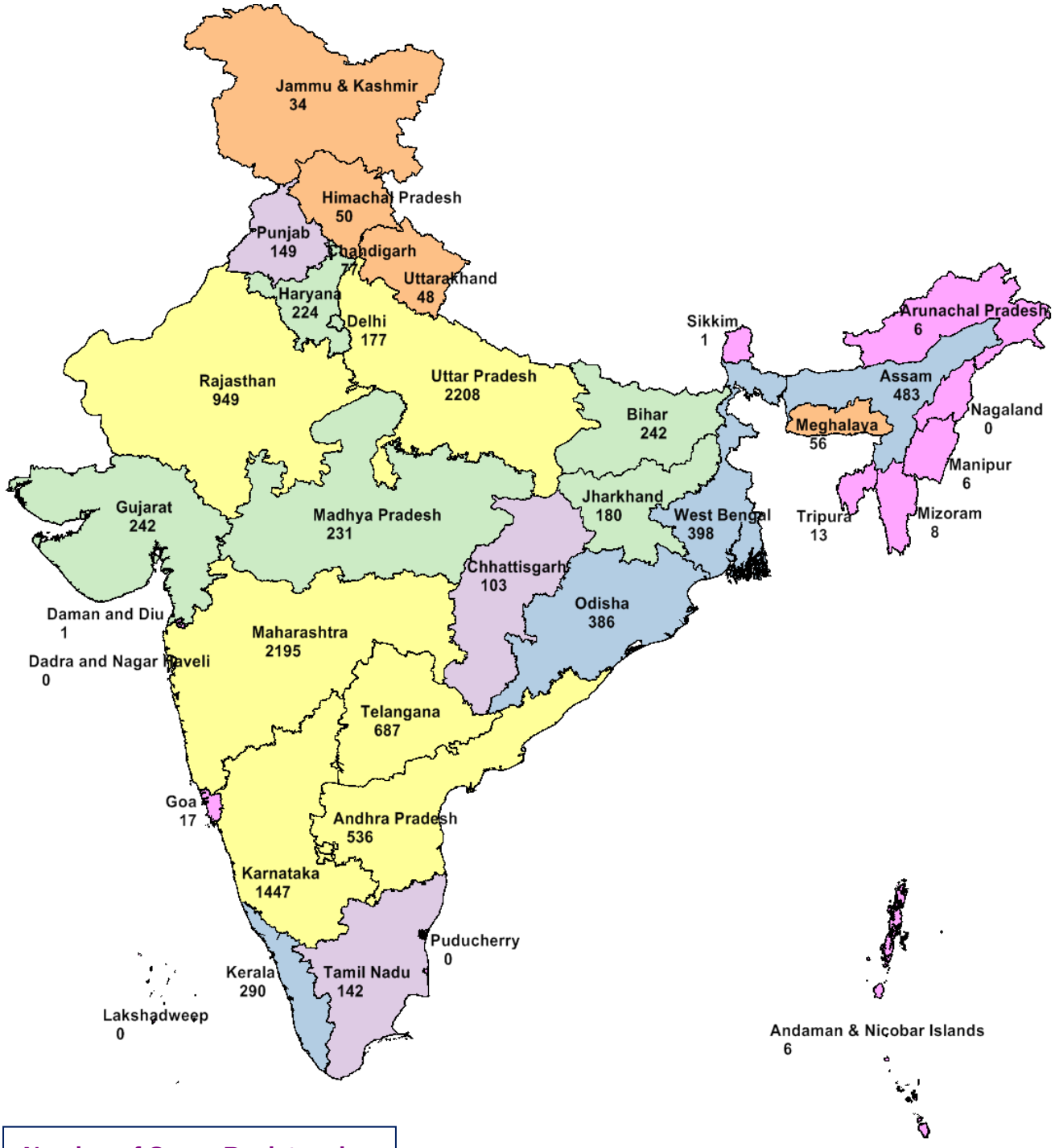
62.8%(5,102 out of 8,121) of the persons arrested under cyber crimes was under the IT Act. Out of 5,102 persons arrested under the IT act., maximum were arrested under computer related offences (under section 66&66A, 66B to 66E of IT Act) (4,217 out of 5,102 persons) accounting for 82.6% followed by publication/transmission of obscene/sexually explicit content (under section 67 & 67A, 67B and 67C of IT Act) accounting for 10.9% (555 out of 5,102 persons) during the year 2015.

The age-wise profile of persons arrested in Cyber Crime cases under IT Act, 2000 showed that 62.5% of the offenders were in the age group 18 yrs. – below 30 years (3,188 out of 5,102 persons) and 30.8%(1,573 out of 5,102 persons) of the offenders were in the age group 30 yrs. – below 45 years. 98 juvenile offenders (below 18 years) were apprehended under IT Act during 2015. A total of 3,502 persons were charge-sheeted, 250 persons were convicted and 358 persons were acquitted under such cases of cyber crimes under IT Act during 2015. Further details on the age group, persons arrested and their disposal under the IT Act by police and courts may be seen in **Table -18.4, 18.5 and 18.6.**

Incidences of Cyber Crimes Registered under IPC

Information on the cases registered under various sections of IPC which were considered as cyber crimes at all-India level is presented in **Table – 18(B).**

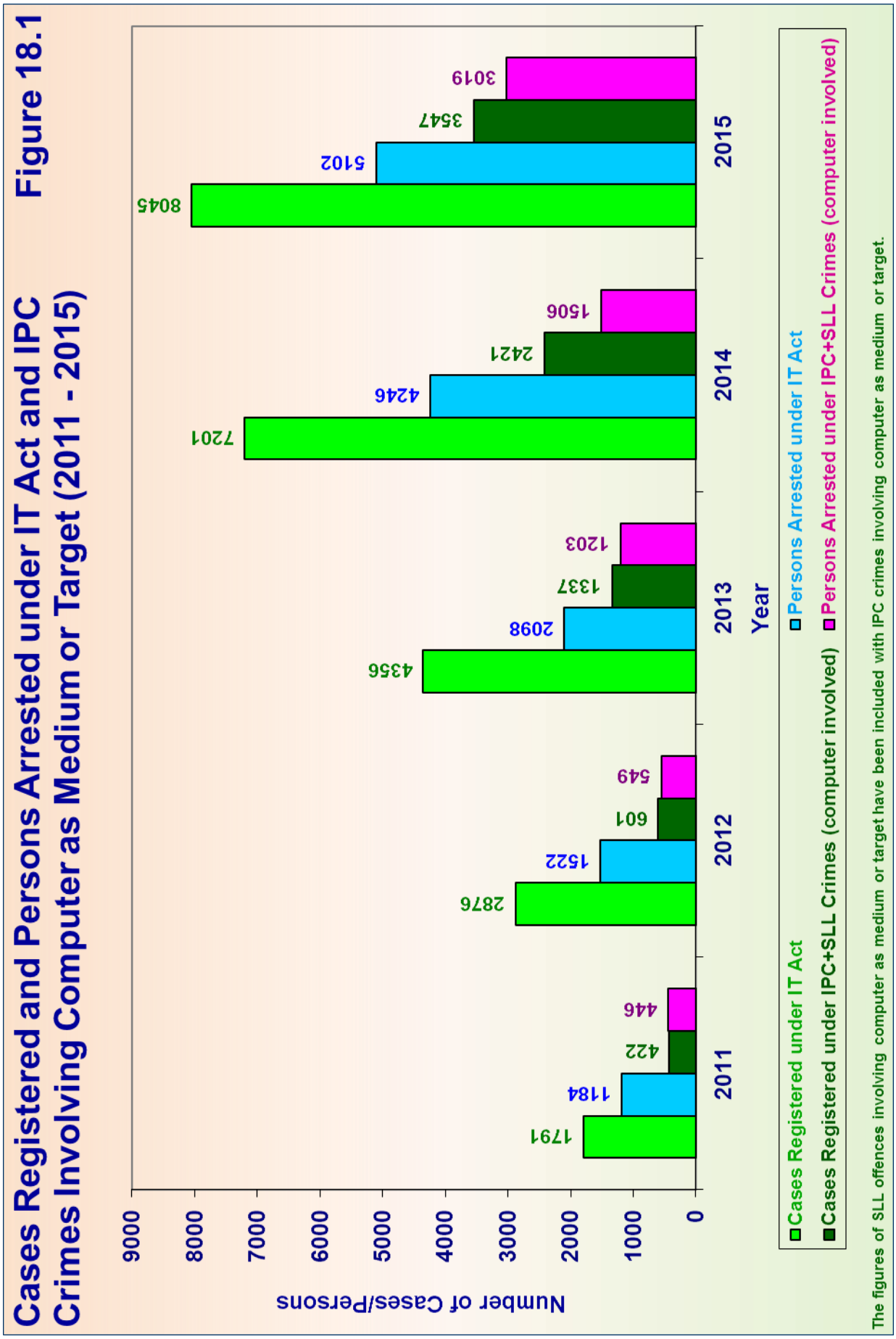
CASES REGISTERED UNDER CYBER CRIME CASES DURING 2015
(All India 11,592)



Number of Cases Registered

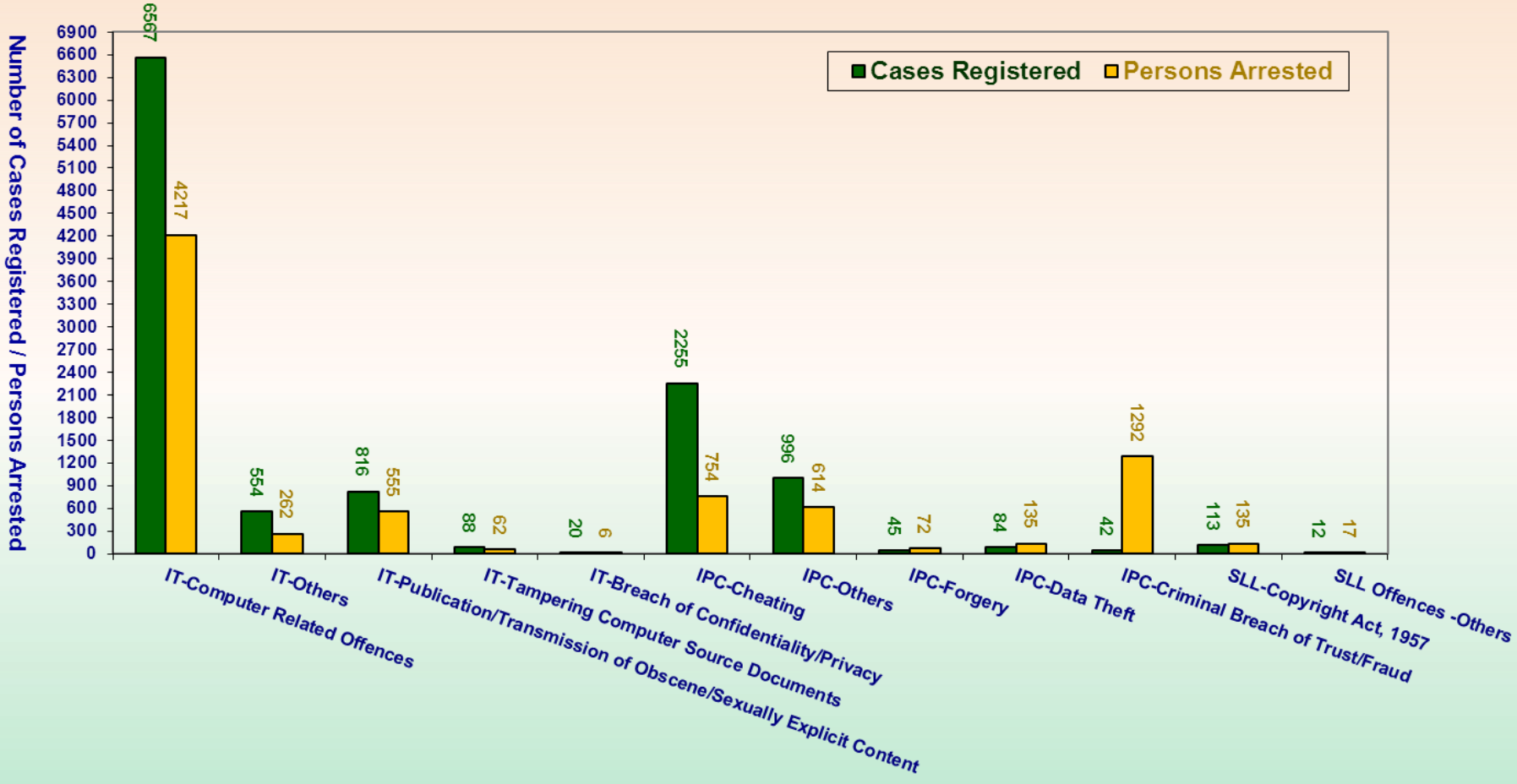
- upto 20
- 21 to 60
- 61 to 150
- 151 to 250
- 251 to 500
- Above 500

Map Powered by DevInfo, UNICEF


Figure 18.1
Cases Registered and Persons Arrested under IT Act and IPC
Crimes Involving Computer as Medium or Target (2011 - 2015)
Number of Cases/Persons
0
1000
2000
3000
4000
5000
6000
7000
8000
9000
2011
2012
2013
2014
2015
Year
1791
1184
422
446
2876
1522
601
549
4356
2098
1337
1203
7201
4246
2421
1506
8045
5102
3547
3019
Cases Registered under IT Act
Persons Arrested under IT Act
Cases Registered under IPC+SLL Crimes (computer involved)
Persons Arrested under IPC+SLL Crimes (computer involved)
The figures of SLL offences involving computer as medium or target have been included with IPC crimes involving computer as medium or target.

Offence-wise Cases Registered and Persons Arrested under IT Act, IPC & SLL (involving Computer as Medium / Target) Relating to Cyber Crime during 2015

Figure 18.2



The figures of Cyber terrorism, Misrepresentation/suppression of fact for obtaining license etc, Intentionally not complying with the order of Controller, Create/publish/make available Electronic Signature Certificate for unlawful purpose, Failure to provide or monitor or intercept or decrypt information, Disclosure of information in breach of lawful contract, Failure to block access any information hosted etc, Not providing technical assistance to Govt. to enable, Publishing /making available false elect. Signature Certificate, online access, Un-authorized access/attempt to access to protected computer system, Counterfeiting, Fabrication/Destruction of electronic records for evidence, Offences by Public Servant and Trade Marks Act, 1999 have been clubbed with Other Crimes of the respective offences.

Table-18 (B)

Cyber Crimes/Cases Registered and Persons Arrested under IPC during 2013-2015

Sl. No	Crime Heads under IPC Crimes	Cases Registered			% Var.	Persons Arrested			% Var.
		2013	2014	2015		2013	2014	2015	
1	Offences by Public Servant	1	0	0	-	2	0	0	-
2	Fabrication/Destruction of Electronic Records for Evidence	12	1	4	300.0	11	1	2	50.0
3	Cheating@	-	1,115	2,255	102.2	-	335	754	55.6
4	Forgery	747	63	45	-28.6	626	58	72	19.4
5	Data Theft@	-	55	84	52.7	-	11	135	91.9
6	Criminal Breach of Trust	518	54	42	-22.2	471	39	1,292	97
7	Counterfeiting *	59	10	12	20.0	93	8	14	42.9
8	Others	-	974	980	0.6	-	772	598	-29.1
Total Offences under IPC		**1,337**	**2,272**	**3,422**	**50.6**	**1,203**	**1,224**	**2,867**	**57.3**

Note * includes property marks, tampering and currency/stamps till 2014 and currency & stamps during 2015
Note: " -" in the column of percentage variation implies zero value in previous year
"@" implies newly entered crime heads. '% Var.' – refers to Percentage Variation in 2015 over 2014

Cyber Crimes – Cases of Various Categories under IPC Crimes

A total of 3,422 cases were registered under various sections of IPC during the year 2015 as compared to 2,272 such cases during 2014, thus showing an increase of 50.6% over the previous year. 65.9% (2,255 cases) of the total 3,422 cases registered under different sections of IPC were related to cheating followed by 2.5% (84 cases out of 3,422 cases) under data theft. A total of 1,681 cases under different sections of IPC were pending for investigation from previous year out of total cases for investigation (5,094 cases) during 2015 and 3,605 cases remained pending for investigation at the end of the year. In 710 cases, charge-sheets were submitted during 2015. Forgery under IPC crimes show highest pendency rate (81.0%) followed by data theft (76.5%) during 2015. A total of 962 cases were pending for trial from previous year, in which maximum number of cases were reported under cheating (306 cases) followed by forgery (29 cases) during 2015. In 53 cases trials were completed, 15 cases ended in conviction and 1,608 cases remained pending for trial at the end of the year 2015. The details of disposal of cases of cyber crimes under different sections of IPC are shown in **Table - 18.2 and 18.3.**

Out of total persons arrested under the cyber crimes, 35.3%(2,867 out of 8,121) were arrested in connection with cases relating to different sections of IPC during 2015. Out of 2,867 persons arrested under IPC cases relating to cyber crimes, maximum persons have been arrested in cases of criminal breach of trust/fraud (1,292 out of 2,867 persons) accounting for 45.1% of total such persons arrested under IPC crimes followed by 754 persons arrested under cheating cases accounting for 26.3% during the year 2015.

The age-wise profile of persons arrested in cyber crime cases under different sections of IPC showed that 55.2%(1,583 out of 2,867 persons) of the offenders were in the age group 18 – 30 years and 36.1%(1,035 out of 2,867 persons) of the offenders were in the age group 30 - 45 years. 52 juveniles (below 18 years) were apprehended under cyber crimes related IPC cases during 2015. A total of 1,262 persons were charge-sheeted, 20 persons were convicted and 57 persons were acquitted under such cases of cyber crimes under different sections of IPC during 2015. Further details on the age group of persons arrested and their disposal under cyber crimes(under different sections of IPC) by police and courts may be seen in **Table -18.4, 18.5 and 18.6.**

Cyber Crimes – Cases of Various Categories under Special and Local Laws (SLL)

A total of 125 cases were registered under various sections of SLL during the year 2015. 90.4% (113 out of 125 cases) of the total cases registered under different sections of SLL were related to the Copyright Act, 1957. Out of 208 cases for investigation, investigations were completed for 112 cases under different sections of SLL during 2015. In 100 cases, charge-sheets were submitted by police during the year 2015 and 96 cases remained pending for investigation at the end of the year. Cases under the Copyright Act has highest pendency rate (51.8%) during 2015. A total of 637 pending cases brought forward for trials during 2015, in which maximum cases were reported under the Copyright Act (622 cases). Out of 101 cases in which trials were completed, 26 cases ended in conviction and 75 cases ended in acquittal/discharge during 2015. A total of 636 cases remained pending for trial at the end of the year. The details of disposal of cases of cyber crimes under different sections of IPC are given in **Table - 18.2 and 18.3.**

1.9% of the persons arrested (152 out of 8,121) are in cases relating to different Acts & sections of SLL. Out of such arrested persons, the maximum number of persons arrested numbering 135 out of 152 persons were in cases under the Copyright Act accounting for 88.8% followed by other SLL offences (17 out of 152 persons) during the year 2015.

The age-wise profile of persons arrested in cyber crime cases under different sections of SLL showed that 62.5%(95 out of 152 persons) of the offenders were in the age group of 30 - 45 years and 23.3%(43 out of 152 persons) of the offenders were in the age group of 18 – 30 years. 2 juveniles (below 18 years) were apprehended under SLL crimes during 2015. A total of 164 persons were charge-sheeted during the year 2015. A total of 32 persons were convicted and 104 persons were acquitted in cases of cyber crimes under different sections of SLL during 2015. Further details on the age group of persons arrested and their disposal under cyber crimes (under different sections of SLL) by police and courts may be seen in **Table -18.4, 18.5 and 18.6.**

Motives of Cyber Crimes

Most of the cyber crimes were registered for greed/financial gain accounting for 33.3% (3,855 out of 11,592 cases) followed by fraud/illegal gain (9.6%) (1,119 cases), insult to the modesty of women (5.2%) (606 cases), sexual exploitation (5.1%) (588 cases) and causing disrepute (3.3%) (387 cases).

State/UT - wise and motives - wise details of cyber crimes during 2015 are presented in **Table 18.7**.

Profile of Accused in Cyber Crimes

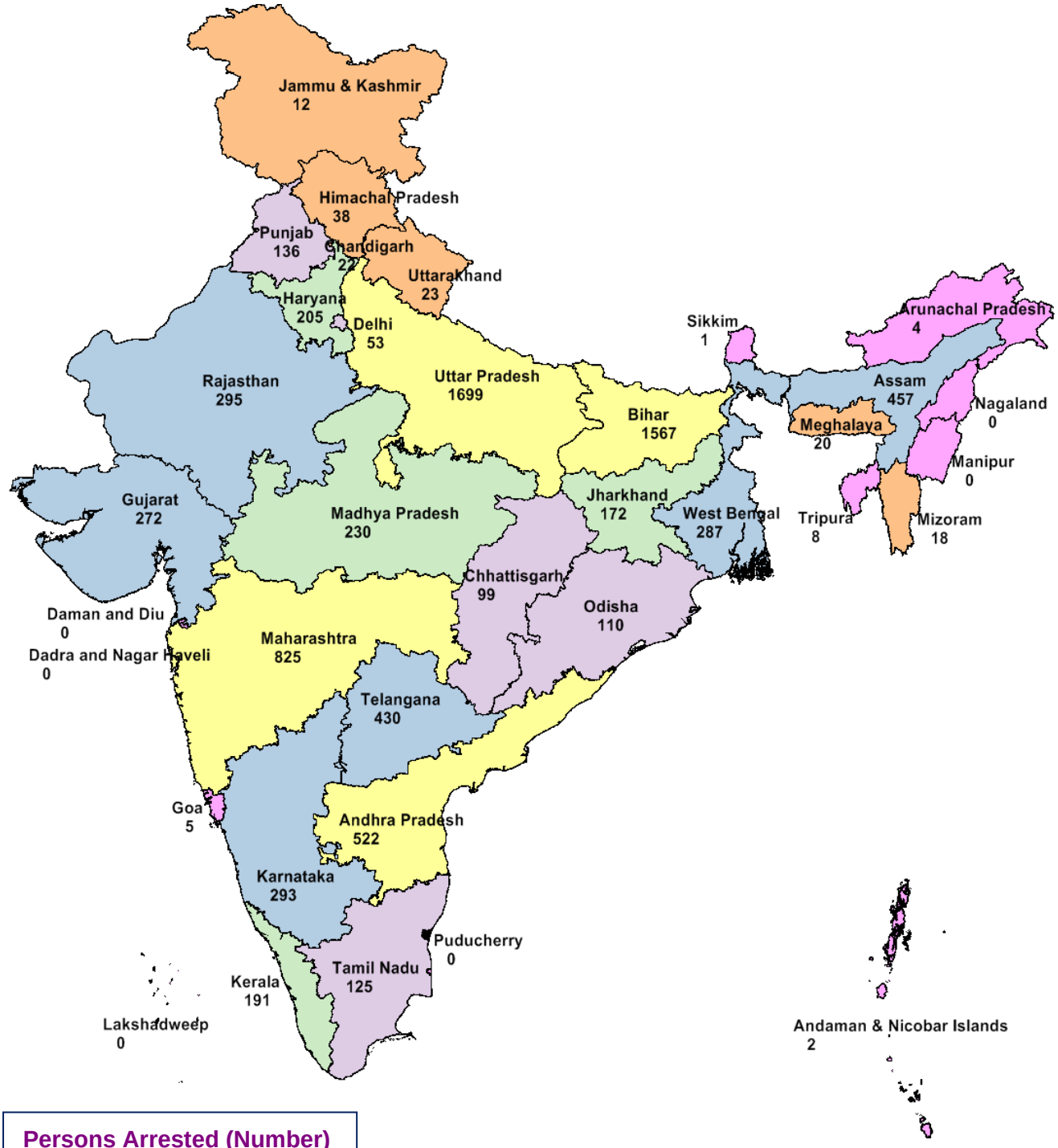
Data on profiles of persons arrested under cyber crimes have been collected as foreign nationals and Indian citizens.

4 foreign nationals and 8,117 Indian nationals were arrested under cyber crimes. Among foreign nationals, one person was cracker/hacker and has been arrested in Chhattisgarh. Similarly among Indian nationals, most of the persons arrested under cyber crime were 'Business Competitor' with 19.6%(1,594 out of 8,121 persons) of total such persons followed by neighbours / friends & relatives' with 14.7%(1,195 out of 8,121 persons) of total such persons, professional computer geeks/hackers/crackers with 13.5% (1,095 persons), student with 10% (814 persons), sexual freak with 5.1% (415 persons) and employees/disgruntled employees 3.1% (249 persons).

State/UT - wise details on profiles of persons arrested or accused of cyber crimes during 2015 are presented in **Table 18.8**.

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PERSONS ARRESTED UNDER CYBER CRIME DURING 2015
(All India 8,121)



Persons Arrested (Number)

- upto 10
- 11 to 50
- 51 to 150
- 151 to 250
- 251 to 500
- above 500

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